



CHILD MARRIAGE RESTRAINT ACT, 1929

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THE CHILD MARRIAGE RESTRAINT ACT, 1929

ACT NO.XIX OF 1929

An Act to restrain the solemnisation of child marriage.

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2. Definitions.- In this Act, unless there is anything repugnant in the subject or context:

- (a) "Child" means a person who, if a male, has not completed twenty one year of age, and if a female, has not completed eighteen years of age ;
- (b) "child marriage" means a marriage to which either of the contracting parties is a child ;
- (c) "contracting party" to a marriage means either of the parties whose marriage is (or is about to be) thereby solemnised and
- (d) "minor" means a person of either sex who is under eighteen years of age.

3. Punishment for male adult below twenty one years of age marrying a child.-- Whoever, being a male above eighteen years of age and below twenty one, contracts a child marriage shall be punishable with simple imprisonment which may extend to fifteen days, or with fine which may extend to one thousand rupees, or with both .

4. Punishment for male adult above twenty one years of age marrying a child-- Whoever, being a male above twenty one years of age, contracts a child marriage shall be punishable with simple imprisonment which may extend to three months and shall also be liable to fine.

5. Punishment for solemnising a child marriage -- (1) Whoever performs, conducts or directs any child marriage shall be punishable with simple imprisonment which may extend to three months and shall also be liable to fine unless he proves that he had reason to believe that the marriage was not a child -marriage.

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1 The Section, in so far as it applies to the Muslim citizens of Pakistan has been amended by the Muslim Family Laws Ordinance, 1961 (8 of 1961), s.12 (w.e.f the 15th July, 1961).

2 The Section, in so far as it applies to Muslim Citizens of Pakistan, has been omitted by Ord. (8 of 1961), s.12 (w.e.f 15th July, 1961).

The section, in so far as it applies to the Muslim Citizens of Pakistan has been amended by the Muslim Family Laws Ord., 1961 (8 of 1961), s.12 (w.e.f the 15th July, 1961).

¹**9. Mode of taking cognizance of offences** -- No Court shall take cognizance of any offence under this Act after the expiry of one year from the date on which the offence is alleged to have been committed.

²**11. Power to take security from complainant.-** 3(1) When the Court take cognizance of any offence under this Act upon a complaint made to it, it may for reasons to be recorded in writing, at any time after examining the complainant and before issuing process for compelling the attendance of the accused, require the complainant to execute a bond, with or without securities, for a sum not exceeding one hundred rupees, as security for the payment of any compensation which the complainant may be directed to pay under section 250 if the Code of Criminal Procedure, 1898(V of 1898), and if such security is not furnished within such reason able time as the Court may fix, the complainant shall be dismissed.

(2) A bond taken under this section shall be deemed to be a bond taken under the Code of Criminal Procedure, 1898(V of 1898) and Chapter XLII of the Code shall apply accordingly.

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¹[9. Mode of taking cognizance of offences -- No Court shall take cognizance of any offence under this Act after the expiry of one year from the date on which the offence is alleged to have been committed.

²11. Power to take security from complainant.- 3(1) When the Court take cognizance of any offence under this Act upon a complaint made to it, it may for reasons to be recorded in writing, at any time after examining the complainant and before issuing process for compelling the attendance of the accused, require the complainant to execute a bond, with or without securities, for a sum not exceeding one hundred rupees, as security for the payment of any compensation which the complainant may be directed to pay under section 250 of the Code of Criminal Procedure, 1898(V of 1898), and if such security is not furnished within such reasonable time as the Court may fix, the complainant shall be dismissed.

(2) A bond taken under this section shall be deemed to be a bond taken under the Code of Criminal Procedure, 1898(V of 1898) and Chapter XLII of the Code shall apply accordingly.

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¹ Subs. Ibid, s.4 for the original s.9.

The section, in so far as it applies to the Muslim Citizens of Pakistan has been amended by the Muslim Family Laws Ord., 1961 (8 of 1961) s.12 (w.e.f 15th July, 1961).

² The Section, in so far as it applies to Muslim citizens of Pakistan, has been omitted by Muslim Family Laws Ordinance, 1961, s.12.(w.e.f the 15th July, 1961)

³ Subs. By the Child Marriage Restraint (Second Amendment) Act, 1938 (19 of 1939), s.5. for the original sub-section(1).

